

Calendar Line 6
Richard Chamberlain v. Jason Chamberlain
25CV457483

Defendant moves for an order declaring Plaintiff a vexatious litigant pursuant to Code of Civil Procedure section 391, subdivision (b)(3), and for issuance of a prefiling order under section 391.7.

Plaintiff opposes, arguing the motion is premature due to a pending motion for reconsideration of the Court's summary judgment ruling, and further contending that his litigation conduct was justified by Defendant's discovery responses and procedural posture.

LEGAL STANDARD

Under Code of Civil Procedure section 391, subdivision (b)(3), a "vexatious litigant" includes a person who, in any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, or engages in tactics that are frivolous or solely intended to cause unnecessary delay or burden.

There is no bright-line numerical threshold; courts consider the totality of litigation conduct. (See *Morton v. Wagner* (2007) 156 Cal.App.4th 963.)

If a litigant is found vexatious, the Court may enter a prefiling order prohibiting the litigant from filing new litigation in propria persona without prior leave of the presiding judge. (CCP § 391.7.)

ANALYSIS

A. Repeated Filing of Motions and Papers

The record reflects Plaintiff filed approximately 35 to 37 motions, applications, or similar requests for relief in this action within a 12-month period. None resulted in substantive relief in Plaintiff's favor.

While lack of success alone is not dispositive, the volume and repetitive nature of motion practice—particularly in a single action and continuing after dispositive adjudication—supports a finding of abusive litigation conduct when considered in the totality of circumstances.

The Court further notes Plaintiff continued filing motions after entry of summary judgment, including motions directed at already adjudicated issues.

B. Unnecessary and Burdensome Discovery

The record reflects Plaintiff propounded in excess of 165 Requests for Admission, substantially exceeding statutory limitations under Code of Civil Procedure section 2033.030 for non-document authenticity requests.

Many requests appear unrelated to the claims or defenses in this action and include allegations of serious misconduct not tethered to the operative pleadings.

The scope, volume, and subject matter of the requests support a finding of unnecessary and burdensome discovery practice.

C. Litigation Conduct and Record Inconsistencies

The Court also considers evidence that Plaintiff submitted a declaration under penalty of perjury asserting that Defendant had produced no documents, notwithstanding record evidence indicating prior service of discovery responses and multiple exhibits.

Additionally, Plaintiff's communications with a witness who provided evidence in support of Defendant include language that may reasonably be construed as coercive in tone and effect.

The Court does not make separate findings beyond the scope of this motion regarding witness intimidation or misconduct, but considers these circumstances as part of the overall litigation pattern.

D. Plaintiff's Opposition

Plaintiff argues the motion is premature due to a pending motion for reconsideration of the Court's summary judgment ruling. This argument is not well-taken. A motion for reconsideration under Code of Civil Procedure section 1008 does not operate as an automatic stay of proceedings and does not divest the Court of authority to hear and decide other properly noticed motions. The Court therefore rejects Plaintiff's contention that the pending reconsideration motion precludes adjudication of this motion.

Plaintiff further argues that the volume of filings was necessitated by Defendant's discovery conduct. The Court is not persuaded that this justifies the repeated filing of numerous motions and extensive discovery requests, particularly after dispositive adjudication of the action.

Plaintiff's remaining arguments, including characterization of citation errors as clerical, do not materially alter the analysis under section 391(b)(3).

DISPOSITION

Considering the totality of the record, the Court finds that Plaintiff, while acting in propria persona, has repeatedly filed unmeritorious motions and engaged in litigation practices that have imposed unnecessary burden on Defendant and the Court.

Accordingly, Defendant has established that Plaintiff meets the definition of a vexatious litigant under Code of Civil Procedure section 391, subdivision (b)(3).

ORDER

1. Defendant's motion to declare Plaintiff a vexatious litigant is GRANTED.

2. Pursuant to Code of Civil Procedure section 391.7, Plaintiff is prohibited from filing any new litigation in propria persona in the courts of the State of California without first obtaining leave of the presiding judge of the court where the litigation is proposed to be filed.
3. The Clerk of the Court shall transmit notice of this order as required for inclusion on the Judicial Council vexatious litigant list.

The Court will prepare the Order.

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Calendar Line 13

Danea Burleson vs Bay Area Ketamine Center, Inc. et al.
25CV469611

BACKGROUND

Plaintiff, a former patient and former employee of Defendant, moves for a protective order restricting Defendant's communications with Plaintiff and Plaintiff's counsel, and further seeks sanctions under Code of Civil Procedure sections 128.5, 128.7, and 2023.030. Defendant, in propria persona, opposes and argues the motion is procedurally improper and must proceed under Code of Civil Procedure section 527.6.

LEGAL STANDARD

Defendant's reliance on Code of Civil Procedure section 527.6 is misplaced. That statute governs standalone civil harassment restraining order proceedings and is not a prerequisite to issuance of a case-management protective order within pending civil litigation. The Court has broad authority to control proceedings and regulate litigant conduct under Code of Civil Procedure sections 128, subdivision (a)(3) and (a)(5), and 187, as well as authority to issue protective orders to prevent harassment, annoyance, and undue burden, including under section 2017.020 where appropriate. Defendant's procedural objection is therefore overruled.

ANALYSIS

The Court finds good cause for a narrowly tailored protective order. The record reflects ongoing direct communications from Defendant to Plaintiff despite Plaintiff's representation by counsel, including communications that are not necessary to the litigation and are reasonably characterized as harassing or inappropriate in tone. The Court finds that restrictions on direct party-to-party contact are necessary to preserve orderly litigation and protect Plaintiff from improper contact.

The Court further finds it appropriate to regulate Defendant's communications with Plaintiff's counsel to the extent such communications occur, limiting them to those expressly permitted by law or court order and requiring that any such communications be professional and limited to legitimate litigation matters.

SANCTIONS

Plaintiff's request for sanctions under Code of Civil Procedure sections 128.5, 128.7, and 2023.030 is denied without prejudice. While the Court does not impose sanctions at this time, the Court expressly admonishes Defendant that the conduct at issue is improper; future violations may result in sanctions or other corrective orders.

IT IS HEREBY ORDERED:

1. Defendant shall not directly contact Plaintiff in any manner, including email, telephone, text message, written correspondence, or in person. All communications shall be directed through Plaintiff's counsel.